

TENTATIVE RULING

Case: Birkenbuel v. Ford dba Custom Upfits
Case No. CV2025-2550

Hearing Date: June 24, 2026 **Department Fourteen** **9:00 a.m.**

Defendant Todd Ford dba Custom Upfits’ motions to compel further responses to form interrogatories, special interrogatories, and requests for production are **DENIED**. (Code Civ. Proc., §§ 2030.300, 2031.310.) “Unless notice of [a motion to compel further discovery] is given...on or before any specific...date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c).) The parties agreed that defendant’s deadline to file these motions to compel further was May 11, 2026. (Falcone decls., ¶ 3; Salaber decl., ¶ 5.) However, plaintiff Clint Birkenbuel did not receive notice of these motions until May 12, 2026 – one day late. (Salaber decl., ¶ 7, Exhibit B.) As plaintiff objects on this basis, this Court is “without authority to rule on [these] motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Defendant’s applications for discretionary relief are **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (b).) As defendant seeks relief in its replies brief, plaintiff was not given an opportunity to respond. Accordingly, the Court declines to consider defendant’s applications. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538 [noting that “[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument”], citation omitted.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Jackson v. Ye**
 Case No. CV2024-1370

Hearing Date: **June 24, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**